BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive • Stockton, CA 95204
Telephone: (209) 801-4442 • E-mail: bnn.cdla@gmail.com

July 12, 2026

VIA ELECTRONIC MAIL
Norman M. Brothers Jr., Esq.
Counsel -- United Parcel Service of America, Inc.
55 Glenlake Parkway NE
Atlanta, GA 30328
E-mail: norman.brothers@ups.com

Re: Pre-Filing Demand for Settlement -- *Newanforbi v. United Parcel Service of America, Inc.* Unlawful Use of California Sex Offender Registry Information for Employment in Violation of Cal. Penal Code § 290.46(j)(2)(E); Failure to Hire in Violation of Public Policy; ICRAA Violations; Demand for $85,000.00 and Injunctive Relief

Dear Mr. Brothers:

I write, pro per, to demand pre-litigation settlement of claims arising from United Parcel Service of America, Inc. (hereinafter 'UPS') -- its decision to deny Plaintiff BRENDAN NGEHSI NEWANFORBI employment based, on information and belief, on his registration in the California Sex Offender Registry -- in direct violation of California Penal Code section 290.46, subdivision (j)(2)(E), which categorically prohibits the use of Megan's Law registry information for any employment purpose.

A complete Draft Complaint for Damages, prepared for filing in the Superior Court of California, County of San Joaquin, is enclosed as Exhibit A. The Draft Complaint asserts six causes of action against United Parcel Service of America, Inc., demands trial by jury, and is in final form. I am currently appearing pro per and am actively seeking to retain employment counsel on a contingency basis. The fee-shifting provision in Penal Code section 290.46(j)(4)(A) makes this matter economically attractive to contingency counsel. Settling now eliminates that attorney fee exposure entirely.

I. THE DOCUMENTED FACTS

The adverse action is established by First Advantage's own sequential notifications, each transmitted from DoNotReply@fadv.com and attached hereto as Exhibits 1 through 4:

* **July 22, 2024, 9:57 AM:** First Advantage transmitted to Plaintiff the Pre-Adverse Action Notification regarding her/his application with UPS -- the statutorily required pre-adverse notification before final adverse action based on a background report -- expressly identifying the subject employer as 'UNITED PARCEL SERVICE.' *(Exhibit 1.)*

* **July 23 and July 27, 2024:** First Advantage transmitted two written reminders urging Plaintiff to review the pre-adverse notification, each reaffirming the subject employer as 'UNITED PARCEL SERVICE.' *(Exhibits 2 and 3.)*

* **July 31, 2024, 9:57 AM:** Nine days after the initial pre-adverse notice -- and following two written reminders -- First Advantage transmitted to Plaintiff the Final Adverse Action Notification regarding his application with UPS, confirming that UPS had taken final adverse action and denied Plaintiff employment. *(Exhibit 4.)*

On information and belief, the background screening report compiled by First Advantage and provided to UPS contained information derived from California's Megan's Law sex offender registry identifying Plaintiff as a registrant. On information and belief, UPS's decision to deny Plaintiff employment was based, in whole or in substantial part, on that registry status. No other known basis for disqualification existed in Plaintiff's application or background history. The pattern of pre-adverse notice, five escalating reminders, and final adverse action -- all transmitted by First Advantage on UPS's behalf -- is consistent with an employer acting on a registry-based background report flag.

On information and belief, the First Advantage report transmitted to UPS included a statutory notice informing UPS of the prohibition in Penal Code section 290.46(j)(2)(E). Background screening vendors routinely include such warnings in reports provided to California employers. Despite that warning, on information and belief, UPS used the registry information to deny Plaintiff employment.

II. THE LAW IS UNAMBIGUOUS

California Penal Code section 290.46, subdivision (j), provides in pertinent part:

> *"(1) A person is authorized to use information disclosed pursuant to this section only to protect a person at risk.*
>
> *(2) Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to ... (E) Employment ... is prohibited."*

The prohibition is categorical. It is not a balancing test. It contains exactly one narrow exception -- 'to protect a person at risk' -- which requires an identified individual exposed to a specific risk of a sex offense in the particular job context. General delivery and package handling positions do not qualify, and nothing in UPS's adverse action materials purports to invoke the exception.

The California Court of Appeal confirmed in *Mendoza v. ADP Screening & Selection Services, Inc.* (2010) 182 Cal.App.4th 1644 that section 290.46's civil-liability provisions target the entity that uses registry information for a prohibited purpose -- not merely the background vendor that reports it. UPS, as the employer that used the information to deny employment, is precisely the entity the statute targets.

III. THE STATUTORY REMEDIES

Penal Code section 290.46(j)(4)(A) provides:

> *"Any use of information disclosed pursuant to this section for a purpose other than that provided by paragraph (1) or another provision of law ... is subject to a civil action for actual damages or twenty-five thousand dollars ($25,000), whichever is greater, by any person whose information was used for the prohibited purpose. The person whose information was wrongfully used may also bring an action for attorney's fees."*

In addition to the $25,000 statutory floor:

- Wrongful failure-to-hire tort damages (*Tameny* claim): compensatory and punitive damages under Civil Code section 3294.
- ICRAA actual and punitive damages (Civ. Code § 1786.50).
- Invasion of privacy damages (Cal. Const., Art. I, § 1).
- Unfair business practices -- restitution and injunctive relief (Bus. & Prof. Code § 17200).
- **Mandatory attorney fees** if counsel is retained (§ 290.46(j)(4)(A)). Settling now eliminates this exposure.

IV. THE DAMAGES MODEL

The following is a conservative damages calculation anchored to UPS Ground's known California wage scales and statutory minimums:

Category	Basis / Calculation	Amount
Lost wages (12 months)	~$20/hr x 40 hrs x 52 wks (UPS CA driver, 2024 rates)	~$41,600
Lost benefits	Health / dental / vision / 401(k) match (~22% of wages)	~$9,152
Emotional distress	Unlawful employment denial; financial hardship	$25,000 -- $75,000
Section 290.46(j)(4)(A) civil penalty	Statutory minimum floor; per violation	$25,000
Attorney fees on judgment	Section 290.46(j)(4)(A); ICRAA; mandatory if counsel retained	TBD
Punitive damages exposure	Civ. Code Section 3294; willful violation by major national employer	$50,000 -- $200,000+
TOTAL EXPOSURE	**Conservative range**	**~$150,752 -- $350,752+**

V. WHY SETTLEMENT NOW IS IN FEDEX'S INTEREST

1. The Pilot precedent is already docketed. Plaintiff filed and served a substantially identical action against Pilot Travel Centers LLC -- *Newanforbi v. Pilot Travel Centers LLC*, Case No. STK-CV-UWT-2026-0007649 -- in the Superior Court of California, County of San Joaquin. That action is in active litigation and arises from the same statute, the same theory, and the same documentary pattern. Resolution of this matter before filing prevents it from being docketed alongside a live, served case presenting identical claims.

2. Discovery will produce the background report. Upon service, Plaintiff will serve document requests for the First Advantage screening report, UPS's employment screening policies for California candidates, and all communications between UNITED PARCEL SERVICE and First Advantage concerning Plaintiff's application. That discovery will confirm what is pleaded on information and belief.

3. Fee exposure escalates immediately upon filing. The fee-shifting provision in Penal Code section 290.46(j)(4)(A) makes this matter economically attractive to contingency employment counsel -- a guaranty of fees upon judgment means no financial risk to retained counsel. Once Plaintiff retains counsel, UPS's total exposure increases by the full amount of those fees. Settling now eliminates that exposure entirely.

4. Pattern-and-practice risk. If UNITED PARCEL SERVICE uses First Advantage's background reports systematically for California candidates, and those reports routinely include sex offender registry hits that UPS uses as the basis for adverse action, discovery and UCL litigation could expose a pattern-and-practice claim with class action potential. Pre-filing resolution forecloses that risk.

VI. THE DEMAND

To resolve all claims arising from the matters described herein without litigation, Plaintiff demands the following:

SETTLEMENT PAYMENT: $85,000.00

(Eighty-Five Thousand U.S. Dollars)

Payment method: Wire transfer to Plaintiff's designated bank account, within **seven (7) calendar days** of the execution of a mutually acceptable written settlement agreement. Wire transfer instructions will be provided upon written acceptance of these terms.

In addition to the monetary payment, the following non-monetary terms are each material to settlement:

(a) **No re-application bar.** Written confirmation that Plaintiff's name, identity, and registry status shall not be used as a basis for denial of any future employment application with Federal Express Corporation or any UPS-affiliated entity.

(b) **Policy acknowledgment.** Written acknowledgment, signed by an officer of United Parcel Service of America, Inc., that California sex offender registry information is not a permissible basis for employment decisions under California law.

(c) **Neutral reference.** A commitment that any future employer inquiry regarding Plaintiff's 2025 application to UNITED PARCEL SERVICE will receive no response other than confirmation that no employment relationship was established.

(d) **Confidentiality of amount only.** The fact of settlement may be disclosed; only the dollar amount will be confidential. No non-disparagement clause. Release limited to claims arising from the July 2024 adverse action.

VII. FORMAL LITIGATION HOLD NOTICE

This letter operates as formal notice of UPS's duty to preserve evidence under *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1 and applicable federal authorities. UPS is directed to immediately suspend any auto-deletion, archive-purge, or document-retention schedule that would result in the destruction, alteration, or loss of:

- All documents, e-mails, system entries, and communications concerning Plaintiff's application to UNITED PARCEL SERVICE, the First Advantage background screening report for Plaintiff, the pre-adverse action notice of March 10, 2025, all subsequent reminder notices, and the final adverse action notice of July 31, 2024;
- All policies, procedures, training materials, and decision matrices used by UPS or UNITED PARCEL SERVICE for California employment candidates flagged with sex offender registry results on background reports, in effect at any time between January 1, 2024 and the present;
- All communications between UPS (including UNITED PARCEL SERVICE) and First Advantage concerning California candidates with sex offender registry results; and
- All data identifying every California candidate against whom UPS took adverse action based on sex offender registry information between January 1, 2024 and the present.

Failure to preserve will be the subject of a spoliation motion under Code of Civil Procedure section 2023.030 and a request for adverse-inference instruction at trial.

VIII. SETTLEMENT-COMMUNICATION PROTECTION

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under California Evidence Code section 1152 and Federal Rule of Evidence 408. The factual recitations herein are based on First Advantage's own transmitted notifications; nothing in this letter limits Plaintiff's right to introduce those underlying documents as evidence at trial.

IX. DEADLINE FOR RESPONSE

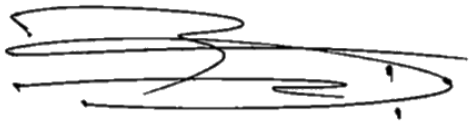
UPS must respond in writing or by email to **bnn.cdla@gmail.com**, on or before **5:00 p.m. Pacific Time on July 26, 2026**. Absent a written acceptance of these terms or a good-faith counter-offer by that deadline, the enclosed Draft Complaint will be filed in the San Joaquin County Superior Court without further notice.

X. RESERVATION OF RIGHTS

Nothing in this letter waives, releases, or limits any claim, right, or remedy. All claims, rights, and remedies are expressly reserved. This letter is not, and shall not be construed as, an offer to settle for any amount less than that stated herein, nor as an admission of fact, law, or comparative fault.

I look forward to your prompt response.

Very truly yours,



_____

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per

Enclosures:
Exhibit A -- Draft Complaint for Damages (*Newanforbi v. United Parcel Service of America, Inc.*), filed-ready format, 22 pages.
Exhibits 1--8 -- First Advantage Adverse Action Notification Documents (March 10--19, 2025), attached hereto.

cc (by e-mail): norman.brothers@ups.com

Method of delivery: Electronic mail to norman.brothers@ups.com.

INDEX OF EXHIBITS

Newanforbi v. United Parcel Service of America, Inc.

Pre-Filing Demand for Settlement -- July 12, 2026

Exhibit 1 **Pre-Adverse Action Notification regarding your application with UPS**

First Advantage (DoNotReply@fadv.com) to Brendan Ngwanforbi
Date: Monday, July 22, 2024, 9:57 AM
Subject: Pre Adverse Action Notification regarding your application with UPS
Employer identified: UNITED PARCEL SERVICE

Exhibit 2 **Reminder No. 1 -- Pre-Adverse Action Notification regarding your application with UPS**

First Advantage (DoNotReply@fadv.com) to Brendan Ngwanforbi
Date: Tuesday, July 23, 2024, 10:00 AM
Subject: REMINDER - Pre Adverse Action Notification regarding your application with UPS
Employer identified: UNITED PARCEL SERVICE

Exhibit 3 **Reminder No. 2 -- Pre-Adverse Action Notification regarding your application with UPS**

First Advantage (DoNotReply@fadv.com) to Brendan Ngwanforbi
Date: Saturday, July 27, 2024, 10:00 AM
Subject: REMINDER - Pre Adverse Action Notification regarding your application with UPS
Employer identified: UNITED PARCEL SERVICE

Exhibit 4 **Final Adverse Action Notification regarding your application with UPS**

First Advantage (DoNotReply@fadv.com) to Brendan Ngwanforbi
Date: Wednesday, July 31, 2024, 9:57 AM
Subject: Final Adverse Action Notification regarding your application with UPS
Employer identified: UNITED PARCEL SERVICE

Gmail

Brendan <bnn.cdla@gmail.com>

Pre Adverse Action Notification regarding your application with UPS

<DoNotReply@fadv.com>
To: <bnn.cdla@gmail.com>

Mon, Jul 22, 2024 at 9:57 AM

First Advantage

Welcome, BRENDAN NGWANFORBI
Please review the Pre-Adverse Action notification for your background screening report for UNITED PARCEL SERVICE

You can securely access the report using the below link.

START
https://pa.fadv.com/#/invite/?key=736A43C469E74A849FD0A41F355B50E3

We recommend using Chrome, Firefox or Safari for the most optimal experience, though any browser should work fine.

Gmail

Brendan <bnn.cdla@gmail.com>

REMINDER - Pre Adverse Action Notification regarding your application with UPS

<DoNotReply@fadv.com>
To: <bnn.cdla@gmail.com>

Tue, Jul 23, 2024 at 10:00 AM

First Advantage

Welcome, BRENDAN NGWANFORBI
This is a reminder to review the Pre-Adverse Action notification for your background screening report for UNITED PARCEL SERVICE

You can securely access the report using the below link.

START
https://pa.fadv.com/#/invite/?key=736A43C469E74A849FD0A41F355B50E3

We recommend using Chrome, Firefox or Safari for the most optimal experience, though any browser should work fine.

Gmail

Brendan <bnn.cdla@gmail.com>

REMINDER - Pre Adverse Action Notification regarding your application with UPS

<DoNotReply@fadv.com>
To: <bnn.cdla@gmail.com>

Sat, Jul 27, 2024 at 10:00 AM

First Advantage

Welcome, BRENDAN NGWANFORBI
This is a reminder to review the Pre-Adverse Action notification for your background screening report for UNITED PARCEL SERVICE

You can securely access the report using the below link.

START
https://pa.fadv.com/#/invite/?key=736A43C469E74A849FD0A41F355B50E3

We recommend using Chrome, Firefox or Safari for the most optimal experience, though any browser should work fine.

Gmail

Brendan <bnn.cdla@gmail.com>

Final Adverse Action Notification regarding your application with UPS

<DoNotReply@fadv.com>
To: <bnn.cdla@gmail.com>

Wed, Jul 31, 2024 at 9:57 AM

First Advantage

Welcome, BRENDAN NGWANFORBI
Please review the Adverse Action notification for your background screening report for UNITED PARCEL SERVICE

You can securely access the report using the below link.

START
https://pa.fadv.com/#/invite/?key=C322270EC0E645508C6EE9E514B31866

We recommend using Chrome, Firefox or Safari for the most optimal experience, though any browser should work fine.